

Comitoli Responsa Moralia qq. 98-99 (EN)

Responsa Moralia — Book I, Questions XCVIII–XCIX (*Moral Responses*)

Paulus Comitulus, S.J. (Paolo Comitoli), Lyon: at the expense of Horace Cardon, 1609

English translation of lib. I, qq. 98–99 (pp. 209–215); the Latin was transcribed from the page images of the 1609 edition with independent adversarial review, and translated 1:1.

QUESTION XCVIII.

1. In the presence of a most eminent prelate, I had a dispute with a religious man and preacher.

Whether the Roman Pontiff could choose for himself a successor: he contended that he could; I, on the contrary, that he could not: and I added this besides, that, with the single exception of Victoria, the Spanish Doctor, no one else, so far as I myself knew, had dared to say what that preacher was affirming.

In this controversy, therefore, it ought to be enough for us that the names of those men be brought forward, and to adduce the arguments of the same, who defend with great earnestness that which we believe. John de Turrecremata, who in the Council of Florence fought most fiercely for the Latins against the Greeks, in l.2.c. 51.de Ecclesia proves that, when the legal Priesthood was transferred, the form also of assuming a person to the Priesthood had to be transferred. In the legal Priesthood, succession of origin and of flesh held force: for the Priests had to be of the stock of Aaron, Exod.c.28. It was fitting, therefore, says Turrecremata, that, the Priesthood having been transferred, a form of this kind should be changed into another, so that the assumption of a person to the Pontificate should now take place not through origin of the flesh, but through election. This is his first argument.

He takes the second from the spirituality of the Evangelical Priesthood: whose supreme principate is deservedly owed not to the flesh, but to life and to the spirit. The third, from the universality of the Priesthood, which can pertain, and does pertain, to all tribes and nations. The fourth, from the quality of life and the sanctity which is required in the greatest Priest — which sanctity is less imperiled, and perishes with greater difficulty, if the supreme Priesthood be committed not by origin, but by election. The fifth, from the fortuitous danger which could occur if the Pontiff were chosen by succession of origin. The sixth, from the utility of the Christian people, over whom the Supreme Pontiff is placed. The seventh, from natural reason: because no one seems justly to preside over a multitude except by its consent: thus, he says, the power of creating for herself a Pontiff was entrusted by Christ to the Church.

2. Whence, Turrecremata adds, it seems to be of natural and, as it were, divine law that the Pope should not make for himself a successor, neither after death nor after resignation. And a little after: thus, therefore, it is evident that it seems consonant with divine as well as natural law that the Pope be made, or the Supreme Pontiff be assumed, by the election of the universal Church, or of those to whom, by the consent of the universal Church, the right of electing has been transferred — as today are the Cardinals, as in c. in nomine Domini distin. 23. & 79. c.1.

Turrecremata confirms this same opinion by the Canon of Anacletus, distin.79. electionem. To the deed of Peter — who, as has been handed down, appointed Clement his successor — he responds that he was appointed with the Church assenting. For, he says, election was of old accustomed to be made with the consent of the clergy and people, dist.63.c.quanto, & c.plures. And he says that the appointment of Clement was by way of election, although the Church afterwards refused a form of this kind. The same Turrecremata, in c.transitus d.79., asks whether the Pope can elect a successor for himself, and he absolutely denies it, and [holds] that, if he should attempt it, the election would be null. This, he says, is the conclusion which Hugo and the Gloss set down, and it is gathered clearly enough from 7.q.1. per totum. But concerning Clement, substituted by Peter, he responds that this was done by divine inspiration, and is not to be drawn into a precedent.

3. Waldensis, in the first volume against the errors of Wicleff.1.2.art.3,c.30., teaches in what way Clement could succeed Peter, the form of succeeding being by no means granted to posterity. For the truth had to correspond to the figure: therefore, just as Aaron, the first and highest legal Priest, signified Peter, the first Evangelical Pontiff; so, when, while Aaron was living, his son Eleazar was created Pontiff, it

was indicated that the same was to be done in the Church of Christ: that, while the first Christian Pontiff was living, another should be created — who was Clement: and just as the remaining Pontiffs of the law succeeded and entered in when he who preceded had died or been expelled, so also the individual Pontiffs of the law of Christ.

For this same opinion contend Armachanus, against the errors of the Armenians, and William of Ockham, whom Almain and Cajetan cite, and whom they follow. Almain, therefore, in the treatise *de auctoritate Ecclesiæ*, proves that the right of electing the Roman Pontiff resides not in him but in the Church; not in him, neither as electing, nor as determining by whom and in what manner he ought to be elected.

In this second point Almain errs: for where the Church has granted her right of electing to this or that class of persons, the Roman Pontiff can prescribe the manner in which they ought to elect; and what he can do, he has also done, most wise laws having been established on that matter. But that point of Almain and Ockham is free from fault, in which they deny to the Pope the power of electing a Pope: for Almain argues thus. Because it could come to pass that the Church, when he was dead, would remain without the power of electing: which argument, he says, William of Ockham touches upon, in 3.par. dialogi tractatu 1.l.1.c.16. Someone might say that the power of electing is as much in him as in the Church.

4. They argue in the second place. That, when the Pontiff perceived that death was hanging over him, he could — whether to render his lineage illustrious, or to increase the ornaments and advantages of his family, or to enrich his kinsmen — hand over to some blood-relation, or, more truly, betray, the Pontificate. This argument was devised by Armachanus, 7.lib.qq. Armenorum c.19.; it has been placed here by us. Likewise, two men could, by nefarious and Simoniacal pacts, divide between themselves the turns and times of wielding the Pontifical power, the best men, and those most useful to the Christian cause, being excluded.

But concerning Peter electing Clement, Almain responds in *eod.cap.columna extrema*. Cajetan, in 1.tomo opuscul. tract.2. *de auctoritate Papæ, & Concilij*, proves the same conclusion: and the elective power of the Pope, he writes, is regularly in the Roman Church, of which the Pope is Bishop: this last does not please many others, as will be understood not much later. And in *resp. ad quantum*

argumentum he speaks in these words. To the fourth it is said that, properly speaking, the elective power is in the Pope in neither way, but because he can determine the Electors and the manner of electing.

But the argument which is drawn from the deed of Peter he refutes in many ways. Either that he did it by the impulse of the Holy Spirit; or on account of the excellence of power, which was proper to him; or because the deed is uncertain: since indeed Linus and Cletus are believed to have ruled the Roman Church as true Pontiffs before Clement, whom they say was named by Peter as his successor. But the canon *si Petrus*, which is of John III, 8.q.1., he interprets in this way. Those words, he says, of Pope John III are to be taken as narrating a believed deed, and not as authorizing the deed which is narrated. Wherefore we use that authority, that it may avail as much as it can avail. And as patrons of this opinion, about which we are disputing, he cites that most acute Theologian Ockham, and Armachanus.

5. The Archdeacon, in *c.Transitus. dist.79.*, writes: Although the Pope can give to others the power of electing successors for him, he himself nevertheless lacks the power of electing a successor for himself. But in the chapter, 8.q.1. *si Petrus*, he says that Peter named and elected a successor because at that time there were no clerics who could elect a Prelate for themselves.

A response, to my mind at least, too little considered. For who would believe that, in so many years in which Peter governed both the universal and the Roman Church, there were not, both in the Roman city and outside it, very many clerics? Panormitanus, in *c.licet de vitanda, de electione, num.2.* of his commentary, subscribes to this opinion in these words. Nevertheless the Pope cannot elect a successor for himself, as the Gloss notes in *c.Apostolica. §. His omnibus. 8.q.1.*, and Io.Andr. follows this here, and Archidiac. in *c.Transitus. 79.dist.*, and this dictum is held commonly by the Doctors, and there is a reason. Because the effect of an election of this kind is referred to a time at which he will not be Pope. *l.eum qui. ff. de iurisdictione omnium iudicum.* But the constitution which he makes concerning the election is admitted, because it provides against future scandals; and in a case in which another besides him cannot provide. Nevertheless the Pope could give to some Prelate the power of electing a successor for him, as in *cap. Petisti. 7.q.1.*, and then the election takes place by the authority of the Pope, not by his own. Sylvester, in *verbo, Excommunicatio, nono, excommunicatione, 2. num. 3.*: The Pope, he says, cannot elect for himself a successor, according to St. Antoninus; and he adduces the reason from Panormitanus.

6. Ockham and Almain nevertheless confess that, when the Electors of the Roman Pontiff could not be convoked, he could substitute another in his own place. Gerson, in tract. de potestate Ecclesiastica, consideratione vndecima, shows that in the Church and in a general Council there is the plenitude of Ecclesiastical power, as regards its application to this or that person, and that in this there is no difficulty.

I know that there are some who think that, if the Cardinals were extinct, the right of electing the Supreme Pontiff would return to the Roman clergy; because he is the true Bishop of Rome, and his parochial Church is the Church of St. John Lateran. But Augustinus of Ancona, whose opinion St. Antoninus follows, in 3.p.tit.21.c.2.§.6., proves that it would at that time be much safer if a general Council were gathered to remove all the inconveniences that could arise. Wherefore, in such a case, says St. Antoninus, the Emperor, and the other Kings and Princes of Christians, could, and ought to, gather a Council of Bishops to carry out an election of this kind. Nor does it stand in the way that a general Council cannot be gathered except by the authority of the Pope, as is held dist.7. per totum, because this is true while he is living, otherwise when he is dead and the college of Cardinals is lacking. Thus far St. Antoninus.

Truly, for me it is a great argument that the Supreme Pontiff cannot put another in his own place, that after Peter this was never done by anyone; but it would have been done, if it could have been done: since it is certain that men of the best character have not always sat in that Pontifical and most holy chair.

Let us therefore believe the Canon of Anacletus, dist.79. at the end. The Lord, it says, reserved to Himself the election of the highest Priests: although He had granted their election to good Priests and to spiritual peoples.

Whether it must be believed by divine and Catholic faith, or not, that the Roman Pontiff who at this or at another time rules the multitude of the faithful is the legitimate Vicar of Christ.

QUESTION XCIX.

1. My plan of counsel was uncertain, whether I ought to set apart this question, which I am now preparing, from the remaining questions of this first volume, or rather to include it among those which touch upon the power of the Roman Pontiff. But the more advisable course was this: to include it.

Since, therefore, not once, nor twice, but frequently I have been pressed by many with this question — whether I judged that upon the whole community of Christians, over which now this Roman Pontiff, at other times another, presides, there has been imposed the necessity of believing by divine and Catholic faith that this very man is the true and legitimate Vicar of Christ — I thought that this Theological and arduous question was by no means to be cast aside: and to its thorough treatment I shall devote my effort in this manner: that first I may state, as briefly as possible, what I myself hold, and why; then, that I may answer, with equal brevity, the things which can be said against it.

2. This opinion, therefore, has for many years now been firmly settled in my mind: that the Roman Pontiff, chosen by those to whom belongs the right of electing, and whom the Christian Church has embraced, is the most true Vicar of Christ: and that this must be believed by each and every one by that faith which can admit nothing false beneath it.

Of this constant persuasion, these can be the principal reasons. The first. Because, for one who opines contrary to what we believe, it is necessary that all the grounds of our religion and of the faith totter, and that all things be thrown into confusion — which the reasons that follow will make plain.

Let this, then, be the second reason. It is an article of the Catholic faith that the Church is one, Catholic, and visible: therefore it must be an article of the same faith that her head is one, universal, and visible: but this is none other than this or that Pontiff: since a Pontiff who is separated in thought from this or that one does not exist in the nature of things; nor is he discerned by the eyes; nor does he do or undertake anything in the Church instituted by Christ: therefore by the Catholic faith we are compelled to believe that this or that man, who is set over the Christian multitude, is the true and legitimate Pontiff.

The third. We believe the true and legitimate succession of the Pontiffs in the Roman Church and chair by Catholic faith, not merely human: But that succession is composed of these or those Pontiffs who were chosen, and who have ruled the Church: therefore we must believe, by a faith which repels every suspicion of falsehood, that each one of these was a true and legitimate Pontiff.

The fourth. We embrace with divine and infused faith the authority of the Ecumenical Councils and the canons of faith handed down by them: therefore by the same faith we must reverence the authority of this or that Roman Pontiff;

without whom no Council can be legitimate; nor is the Church bound by its laws and sanctions before it is confirmed by the Roman Pontiff: but he who convokes the Council, and confirms it, is Sylvester, Agapitus, Leo, Pius, Paul: therefore it must be believed by certain and Catholic faith that these are true and legitimate Pontiffs.

The fifth. If the Roman Pontiff, responding from the chair, should decree something pertaining to the Catholic faith, the whole Christian people is compelled to assent to that decree by Catholic faith: therefore by that same faith it is necessary to believe that in the Pontiff who was the author of the decree there was a legitimate power of decreeing. But he who decrees is Peter, Paul, Stephen, Clement: Therefore, that these men are strong in true, and legitimate, and Pontifical authority must be grasped by the Catholic faith.

3. The sixth. It is nefarious to suspect that the universal Church errs in the worship of the Sacraments: therefore, when the Roman Pontiff proposes, and commands, some saint to be venerated by the whole assembly of the faithful, he himself cannot in that matter be deceived, or deceive: because he cannot cast error before the Christian people in a necessary matter of worship. But when he enrolls someone among the saints, and commands him to be adored by the Christian multitude, he does this as the true and legitimate vicar of Christ: Therefore we must affirm in a Catholic manner that he is such.

The seventh. Those who in Britain met death for the defense of the Pontifical authority of Gregory XIII attained the glory of martyrs just as if they had poured forth their blood for the Catholic faith: nor did those holy and most valiant men doubt, at the time when they were fighting for the Pontifical authority of Gregory XIII, that they were contending for the cause of the faith.

The eighth. We believe by Catholic faith that the Roman chair is the interpreter of religion, the incorrupt mistress of sacred things and of morals: but there is no Roman chair except that which this or that Pontiff holds, whom the Church chooses for herself: not one who has never existed, nor ever will exist, on earth: therefore we must believe, by a faith which cannot err, that this or that man is the true and legitimate prelate of that same chair. To this eighth argument great authority is given by those words in the profession of faith published by Pius IV: *I acknowledge the holy Catholic and Apostolic Roman Church as the mother and*

mistress of all Churches. But the moderator and master of the Roman Church is Anicetus, Innocent, Clement: These men, therefore, we must acknowledge by Catholic faith as true masters of faith and doctrine.

The ninth reason. Christ instituted an Ecclesiastical monarchy, which is to be coextensive with the whole succeeding age of the world. Therefore, since a monarchy cannot exist without a monarch, it belongs to divine faith to believe that a true monarch will never be lacking to it: but this monarch cannot be imagined to be any other than the successor of Peter, who is elected by the legitimate assent either of the Church, or of those to whom it pertains: therefore we are compelled to believe that this, or that, elected Roman Pontiff is the true and legitimate head and Ruler of this sacred monarchy.

The tenth. The Catholic faith teaches that the Christian Church is the true and legitimate Church: therefore the same faith teaches that the Roman Pontiff, this one or that, is the true and legitimate vicar of Christ: for the reason that he is the fount and disseminator of the whole community of Christians: since by him Bishops are created, by these priests, and by the priests the rest of Christians; so that he who doubts of the truth of the Pontificate of Peter, Paul, Boniface, Clement must needs doubt likewise of the truth of the Church.

The eleventh. It is a dogma of the Catholic faith that the Ecclesiastical Hierarchy has been divinely constituted: for thus in Concil.Trident. sess.23.can.6.: If anyone shall say that in the Catholic Church there is not a Hierarchy instituted by divine ordination, which consists of Bishops, priests, and ministers, let him be anathema: but the principal part of this Hierarchy is the Roman Pontiff, its head and visible Ruler. Therefore, just as we are commanded to believe by divine faith that the Hierarchy is true, so also that its head is true: but this head is this or that Pontiff, whom we can mark out with our eyes and finger: wherefore, etc.

The twelfth. It is likewise a dogma of the Catholic faith that Bishops assumed by the Roman Pontiff are legitimate and true Bishops: therefore it must be confessed by Catholic faith that the Pontiff, by whose authority they are assumed, is a legitimate and true Pontiff. The antecedent of this enthymeme is that of the Council of Trent, sess.23.can.8., decreeing in these words. If anyone shall say that the Bishops who are assumed by the authority of the Roman Pontiff are not legitimate

and true Bishops, but a human contrivance, let him be anathema. Therefore, the truth of the Catholic faith compelling, it must be said that Clement, Pius, Gregory, by whose authority Bishops are elected, are legitimate and true Pontiffs.

The thirteenth. Whoever should either infringe or deny the authority of the sacred sanctions, whether of Innocent III, or of Alexander III, or of Gregory IX, or of Boniface VIII, or of the other Pontiffs — by which sanctions judgments are exercised in the Church — would be constrained by the penalties of heretics: therefore it is necessary to believe by Catholic faith that the authority of those from whom they proceeded was true, and legitimate, and Pontifical.

This same argument is confirmed from the constitution of Paul IV published against those who canvass for the Papacy, and against those who treat of the election of a future Pontiff while another is living: for he decrees that he who shall have said that the things which were decreed by him in his constitution are either illicit or iniquitous, or that he could not, or ought not, to have done what he did, can be punished and condemned as a true schismatic and heretic.

The last reason. Whoever should utterly deny that Clement VIII, whom the Catholic Church obeys, is either the head of the Church, or the true successor of Peter, or the vicar of Christ, would sin not against human faith, but against the orthodox faith, which can admit nothing false beneath it, and would be burned in the flames as a true heretic: therefore it pertains to the divinely infused faith that Clement VIII be proclaimed by each and every Christian the true and legitimate vicar of Christ.

4. It remains for us to draw away the foundations of the contrary opinion. First, against the true opinion it can be objected that, with the Catholic faith intact, one may be in doubt concerning any private priest whatsoever, whether or not he be a true and legitimate priest: why, then, will it not be equally lawful, without the crime of heresy, to be in doubt concerning this Roman Pontiff?

I respond: because with the power of the Roman Pontiff many things are bound up which must be held by the Catholic faith: as, that in him resides the power of convoking and confirming Councils; of settling controversies of faith; of enrolling pious and religious men, after their death, among the saints; of creating Bishops; of removing Kings and Emperors, when it is necessary, from kingdom and empire; of

ruling the universal Church, and of imposing salutary laws upon her: and since none of these falls upon a private priest, he who doubts that such a man is a priest does not contract the guilt of heresy.

The subtle opiners add: And yet the Catholic faith imposes upon no one the necessity of believing that the Roman Pontiff has been baptized: but without baptism he cannot be the true and legitimate vicar of Christ: therefore the Catholic faith does not impose upon anyone the necessity of believing that he is the true Pontiff.

But the argument is shattered by conversion: for since by the Catholic faith we are compelled to confess that there is a true and legitimate vicar of Christ in the Catholic Church, on account of the so many reasons adduced, a necessary consequence now compels the conclusion that he is baptized, that he is orthodox, that he is a male: and that he is all that without which the Pontifical power cannot stand.

5. For it belongs to the divine providence, which does not deceive the Church, that His vicar, whom He wills to be set over His flock to feed it, should lack nothing which the so great power that he bears, and the office that he must execute, necessarily demand: but it demands that he be a man, devoid neither of faith, nor of baptism, nor of reason: therefore it must necessarily be believed that he is a man, and faithful, and baptized: by a necessity, I say, of consequence, and of the divine providence taking counsel for His Church.

And just as to call into doubt the Catholic faith and the baptism of the most holy Pontiffs, Linus, Leo, Gregory, would be the part of an impious man: so it is abhorrent to pious minds to call these same things into controversy in any other Pontiff whatsoever who governs the same Church of Christ.

Nor is this wont to be passed over by the adversaries: that, since certain things stain and vitiate the election of the Roman Pontiff — among which the chief is the blot of simony, according to the constitution which begins, *cùm tam diuino quàm humano iure*, promulgated to the Christian world in 1505, on the 18th day of January, where it is established that a simoniacal election of the Roman Pontiff is null, and can never at any time acquire validity — which constitution Pius IV confirmed by another of his own, whose beginning is: *in eligendis Ecclesiarum*

Prælati — it is consequent that, as much danger as is present in the elections of the Supreme Pontiffs, just so much doubt is present in the power of those who are elected.

I respond that God, who by a certain special providence presides over the election of His vicar, and governs the inclinations and votes of the electors, either will not suffer vices of this kind to fall upon the election; or, if they should fall upon it, will straightway uncover them: lest her own legitimate spouse, parent, and ruler be lacking to the Church. But the things which are summoned from human history — of its own nature captious and fallacious — for the overthrowing of this truth which we ourselves defend, are to be esteemed at no great worth. Moreover, that the Roman Bishop, by divine institution, has been and will be the successor of Peter in the care and ruling of the universal Church, Turrecremata, Driedo, and Cano have endeavored both to teach and to persuade; read Turrecremata, lib.2. de Ecclesia, in many chapters; Driedo, lib.4. de variis dogmat. c.4. par.3.; Cano, lib.6. de locis Theologicis, cap.4.5.6. For by this last disputant so many testimonies of the Fathers and of the holy Roman Pontiffs have been collected, that he will have satisfied the desire of even the most inquisitive mind.

Nor is it right to be ignorant of the things which, with wondrous religion and faith, were written by St. Thomas on behalf of the Roman Pontiff in the opusculum de erroribus Græcorum, especially in that chapter of which these are the first words, and this the first sentence. Moreover, the error of those who say that the vicar of Christ, the Pontiff of the Roman Church, does not have the primacy of the universal Church, is similar to the error of those who say that the Holy Spirit does not proceed from the Son: for Christ Himself, the Son of God, consecrates His Church, and seals it to Himself by the Holy Spirit as by His own character and seal, as is manifestly had from the authorities set down above: and in like manner the vicar of Christ, by his primacy and providence, as a faithful minister, preserves the universal Church subject to Christ.